

26PSCV00943 26PSCV00943

County: los-angeles

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Case Number: 26PSCV00943 Hearing Date: September 23, 2026 Dept: 6

Plaintiff

U.S. Bank National Association's Request for Entry of Default Judgment

Defendants: Ray Vargas aka

Ray V Vargas and Margarita Vargas

TENTATIVE RULING

Plaintiff's request for entry of default judgment is DENIED without prejudice.

BACKGROUND

This

is a lending dispute. On March 16, 2026, plaintiff U.S. Bank National Association (Plaintiff) filed this action against defendants Ray Vargas aka Ray V Vargas, Margarita Vargas (collectively, Defendants) and Does 1 through 10, alleging one cause of action for replevin.

On August 24, 2026, Defendants' default was entered. On August 25, 2026, Plaintiff requested entry of default judgment.

LEGAL

STANDARD

Code of

Civil Procedure section 585 permits entry of a default judgment after a party

has failed to timely respond or appear. (Code Civ. Proc., § 585.) A party seeking judgment on the default by the court must file a Request for Court Judgment and: (1) a brief summary of the case; (2) declarations or other admissible evidence in support of the judgment requested; (3) interest computations as necessary; (4) a memorandum of costs and disbursements; (5) declaration of nonmilitary status; (6) a proposed form of judgment; (7) a dismissal of all parties against whom judgment is not sought or an application for separate judgment under Code of Civil Procedure section 579, supported by a showing of grounds for each judgment; (8) exhibits as necessary; and (9) a request for attorneys' fees if allowed by statute or by the agreement of the parties. (Cal. Rules of Court, rule 3.1800, subd. (a).)

ANALYSIS

Plaintiff

seeks default judgment against Defendants for possession of the subject vehicle. Plaintiff's request for entry of default judgment fails for multiple reasons. First, Plaintiff did not dismiss any of the Doe Defendants, which is required before the Court may enter default judgment. (Cal. Rules of Court, rule 3.1800, subd. (a)(7); see *Goya v. P.E.R.U. Enters.* (1978) 87 Cal.App.3d 886, 894.)

Second,

Plaintiff did not serve the request for entry of default judgment on Defendants. (CIV-100 (8/25/26), ¶ 6; Code Civ. Proc., § 587; *Bae v. T.D. Serv. Co. of Arizona* (2016) 245 Cal.App.4th 89, 108, fn. 15 [Code Civ. Proc., § 587 applies to requests for entry of default judgment, even if default was previously entered].)

Third, Plaintiff Summary of Case

and Memorandum of Points and Authorities in Support of Application for Default judgment is not signed. (See Summary of Case (8/25/26), p. 3 of pdf; Code Civ. Proc., § 128.7, subd. (a).)

The Court also notes that Plaintiff's

documentary evidence also includes documents for what appears to be an unrelated case involving borrowers named *Ortegas Trucking LLC* and *Jocelyn Coutino*. (Reesman Decl., pp. 20-41 of pdf.) The Court assumes these were included by accident.

CONCLUSION

Based on the foregoing, Plaintiff's request
for entry of default judgment is DENIED without prejudice.